

# China State Council Provisions on Industrial and Supply Chain Security (China State Council Order 834), March 2026

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**Article 1:** These Provisions are drafted on the basis of laws such as the PRC National Security Law, the PRC Foreign Relations Law, the PRC Counter Foreign Sanctions Law, and the Foreign Trade Law, in order to take precautions against industrial and supply chain security risks, to increase industrial and supply chain resilience and security, and to preserve economic and social stability and national security.

**Article 2:** Industrial and supply chain security work is to implement the holistic view of national security, coordinate development and security, coordinate domestic and international matters, advance a high-level opening up to the outside world, and promote the stability and openness of global industrial and supply chains.

**Article 3:** The state is to establish and complete work mechanisms for industrial and supply chain security, and plan and coordinate industrial and supply chain security work.

State Council departments, such as for foreign affairs, development and reform, industry and information technology, public security, national security, rule of law, finance, natural resources, transportation, agriculture and rural affairs, commerce, financial management, customs, market regulation, and cybersecurity and informatization, are responsible for industrial and supply chain security work in accordance with the division of their responsibilities. The relevant State Council departments are to strengthen coordination and cooperation in industrial and supply chain security work.

With state planning and coordination, the provincial, autonomous region, and directly-governed municipality people's governments are responsible for industrial and supply chain security work related to the corresponding administrative region.

**Article 4:** The state is to guide the reasonable and orderly layout of industrial and supply chains, promote the digitalization and intelligent upgrade of industrial and supply chains, improve the safety and controllability of industrial and supply chains, and promote the high-quality development of industrial and supply chains.

Enterprises are encouraged and supported to open up diverse supply channels, carry out industrial and supply chain cooperation, and participate fairly in market competition. to increase the level of risk prevention in industrial and supply chain security.

**Article 5:** The state is to adhere to the principles of equality, mutual benefit, and win-win cooperation, strengthen international cooperation in the field of industrial and supply chains, and actively participate in the formulation of international rules related to industrial and supply chains.

**Article 6:** When formulating relevant plans, the relevant State Council departments and the people's governments of provinces, autonomous regions, and directly governed municipalities shall fully consider the possible impact on the industrial chain and supply chain security.

**Article 7:** The state is to strengthen safeguards for industrial and supply chain security in key sectors. The relevant State Council departments are to draft a list of key sectors and dynamically adjust it to maintain the stable and continuous operation of the production and circulation of raw materials, technology, equipment, products, and so forth, in key sectors.

**Article 8:** The relevant State Council departments are to promote information sharing on the industrial and supply chains in key sectors, strengthen information platform support, guide industries and enterprises to strengthen information interconnection and interoperability for industrial and supply chains in key sectors, and employ effective measures to ensure data security.

**Article 9:** The state is to establish and complete monitoring and early warning systems for threats to the security of industrial and supply chains. The relevant State Council departments are to organize and carry out assessment and monitoring of the stability of supply channels for raw materials, technology, equipment, products, etc., and their impact on economic and social stability and national security, etc., and identify threats to industry and supply chain security, and promptly issue early warning information.

Where enterprises, industry associations, chambers of commerce, and so forth discover situations that impact the industrial and supply chain security, they may report them to the relevant departments of the people's government at the county level or above.

**Article 10:** The state is to establish and complete systems for the prevention of industrial and supply chain security risks in key sectors. The relevant State Council departments are to organize and carry out material and capacity reserves in key sectors, increase the degree of research and development in technology, equipment, and products, and improve capacity for combating risks to industrial and supply chains in key sectors.

The relevant State Council departments and local people's governments shall employ targeted measures for preventing risks to industrial and supply chain security in consideration of the characteristics of the corresponding industry or region.

**Article 11:** The state is to establish and complete emergency response management systems for industry and supply chains in key sectors, and the relevant State Council departments are to draft emergency response work plans. Where situations impacting the security of industry or supply chains in key sectors appear, threatening economic and social stability and national security, emergency response measures may be employed, such as emergency dispatch, using reserves, and organizing production, transport, and supply, upon a decision by the State

Council or departments authorized by the State Council Where laws or administrative regulations provide otherwise, follow those provisions.

The relevant State Council departments and local people's governments shall implement emergency response measures in accordance with their authority, and promptly conclude their implementation after the relevant circumstances have dissipated. Relevant organizations and individuals shall cooperate in the implementation of emergency response measures.

**Article 12:** Encourage and guide social capital investment, support scientific and technological research and development in key sectors and core technology research, and promote the transformation of scientific and technological achievements.

Enterprises, research bodies, and so forth shall improve risk control systems, making it so that core technology and related information systems and data are safe and controllable. Relevant departments shall strengthen guidance and training.

**Article 13:** Where any organization or individual violates our nation's laws, administrative regulations, department rules, and relevant state provisions by carrying out information gathering activities such as surveys related to industrial and supply chains, the relevant departments are to employ measures to address it in accordance with law.

**Article 14:** Where foreign states or regions, and international organizations violate international law and the basic norms of international relations, by employing discriminatory prohibitions, restrictions, or other similar measures against our nation in the area of industrial and supply chains, or carry out or assist in carrying out acts that harm our nation's industrial and supply chain security, the relevant State Council departments have the authority to carry out industry and supply chain security investigations on the measures or acts.

In accordance with procedures, the relevant State Council departments may employ corresponding measures including, but not limited to, prohibiting or restricting the import or export of related goods and technologies, or international service trading, collecting special fees, and so forth.

In accordance with the Law of the PRC on Countering Foreign Sanctions, and the Implementation Provisions for the Law of the PRC on Countering Foreign Sanctions, etc. the relevant State Council departments may make a decision to enter organizations and individuals who directly or indirectly participated in the drafting, decision-making or implementation of measures provided for in the first paragraph of this article, into the counter sanctions list, and employ counter sanction measures.

**Article 15:** Where foreign organizations or individuals violate the principles of normal market transactions by taking actions such as suspending normal transactions with our nation's citizens or organizations, or employing discriminatory measures against our nation's citizens or organizations, causing substantive harm, or the threat of substantive harm, to the security of our nation's industry or supply chains, the relevant State Council departments have the authority to carry out investigations into industry and supply chain security.

The investigations can employ necessary methods such as questioning relevant parties, reading or reproducing relevant documents and materials, and the relevant parties shall cooperate with the investigation. During the investigation, parties may make statements and defenses.

Based on the outcomes of the investigation, the relevant State Council departments may employ measures against the foreign organizations or individuals, such as prohibiting or restricting their engagement in import and export activities with the [mainland] territory of our country, prohibiting or restricting their investment within the [mainland] territory of our nation, prohibiting or limiting domestic organizations and individuals from conducting transactions, cooperation, and other activities with them with the [mainland] territory, prohibiting or restricting relevant personnel and transports from entering the [mainland] territory, canceling or restricting relevant personnel's qualification to work, stop-over, or reside in our nation's [mainland] territory. Relevant measures may be applied to organizations that have foreign organizations or individuals as their actual controllers or that foreign organizations or individuals participated in the establishment or operation of.

**Article 16:** Organizations and individuals in our nation's [mainland] territory shall implement the measures that relevant State Council departments provide are to be employed in accordance with Articles 14 and 15.

The relevant State Council departments have the authority to order corrections from organizations or individuals that violate the provisions of the preceding paragraph, to prohibit or restrict their engaging in government procurement or bidding, as well as in the import or export of related goods and technologies, international service transactions, or other such activities, to prohibit or restrict their receipt of data or personal information from abroad or its provision abroad, or prohibit or restrict their leaving the [mainland] territory, or their stopping or residing in our nation's [mainland] territory.

**Article 17:** Professional service institutions, such as law firms and notaries, are to be encouraged and supported in providing our nation's citizens and organizations with legal services related to industrial supply chain security.

**Article 18:** These Provisions are to take effect from their date of issue.